

COMPLAINT NO. 1061-18-0216

IN THE MATTER OF

RICHARD ZELLO

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **RICHARD ZELLO** ("Respondent") and which constitutes a full settlement and compromise of the complaint currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#71486) in the State of Texas and is therefore subject to the jurisdiction of the Council.
2. On or about August 14, 2018, Respondent was arrested pursuant to four felony indictments; specifically, one regarding fraudulent possession of a controlled substance, two indictments regarding fraudulent use of a registrant order form, and one regarding attempted fraudulent use of a registrant order form. Respondent failed to report the indictments and arrest to the Board, in writing, within 30 days.
3. On or about May 2015 to March 2018, the Respondent accessed a minimum of five physicians' narcotics licenses to attain illegal drugs for his personal use.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§ 503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council

Rules 22 Tex. Admin. Code § 681.45(e)(2) and §681.44(3).

4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation. By entering into this Agreed Order, Respondent does not admit the foregoing Findings of Fact or Conclusions of Law but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Probated Suspension. Respondent's license is SUSPENDED for a period of two (2) years from the effective date of this order. However, the two (2) years of suspension shall be PROBATED, so long as Respondent complies with all state and federal statutes and regulations pertaining to the practice of professional counselors. Although the probated suspension ordered herein will result in Respondent's license being restricted, Respondent shall take all steps necessary to renew and maintain Respondent's license while this order is in effect.
2. Practice Monitor. Respondent shall be required to practice under the supervision of a practice monitor who must have a background in substance abuse addiction (hereinafter, "supervisor" or "monitor") for the period of probation. Respondent shall, within fourteen (14) days of the effective date of this order, submit to the Council, or its designee, for approval the name and qualifications of: (1) a Texas-licensed professional counselor-supervisor with no record of disciplinary actions who (2) has no business, professional, personal, or other relationship with Respondent that would interfere with the therapist's function or duties, and who (3) possess specialized knowledge, education and experience in the same field of practice as that of Respondent, and who (4) has professional experience in substance abuse addiction.

Contract and Plan. Once approved, the supervisor shall submit to the Council or its designee a monitoring contract and plan by which Respondent's practice shall be monitored for compliance with ethical and legal practice standards, as well as the terms of this Order.

Frequency of Monitoring & Execution of Release. Monitoring shall consist of at least one (1) hour of individual meetings every month. The Respondent shall provide the supervisor with a copy of this Order and access to Respondent's records. Respondent shall execute a release authorizing the supervisor to divulge any information the Council or its designee may request.

Quarterly Monitoring Reports. It shall be Respondent's responsibility to assure the supervisor submits quarterly written reports to the Council or its designee on a quarterly basis verifying that monitoring has taken place and providing an evaluation of Respondent's performance. At the Council's discretion, if any of these reports provides sufficient concern, the Council may impose further monitoring requirements and/or take

other appropriate actions to ensure the safety of the public.

Recommendations of Supervisor. In the event Respondent's supervisor indicates that Respondent is fit to practice as a professional counselor, but makes recommendations concerning reasonable steps Respondent must or should take to enhance or maintain Respondent's fitness to practice as a professional counselor, Respondent shall comply with any and all recommendations made by Respondent's supervisor. If Respondent refuses or fails to follow the recommendations, Respondent agrees that Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

If the supervisor concludes there is sufficient concern or need to impose further requirements, restrictions, and/or take other appropriate actions to ensure the safety of the public the Council, or its designee, may do so at its own discretion. In the event Respondent refuses or fails to follow the additional requirements or restrictions imposed by the Council, or its designee, Respondent agrees that Respondent's license shall be SUSPENDED, without further hearings, informal settlement procedures, or any right of appeal for judicial review; pending further review of Respondent by the Council, or its designee.

Changing Supervisors. If the supervisor cannot continue the monitoring engagement, Respondent shall obtain approval from the Council or its designee for a new supervisor. If no new practice monitor is approved, Respondent shall not practice until a new practice monitor has been approved. Respondent shall pay all costs associated with this practice monitoring requirement.

RESPONDENT AGREES THAT ANY FAILURE TO COMPLY WITH THE PRACTICE MONITORING REQUIREMENTS SHALL CONSTITUTE IMMEDIATE GROUNDS FOR REVOCATION OF RESPONDENT'S LICENSE.

WARNING

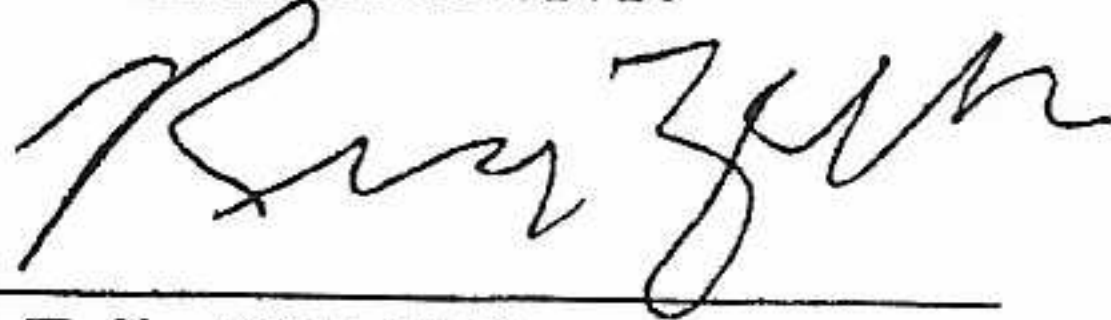
RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

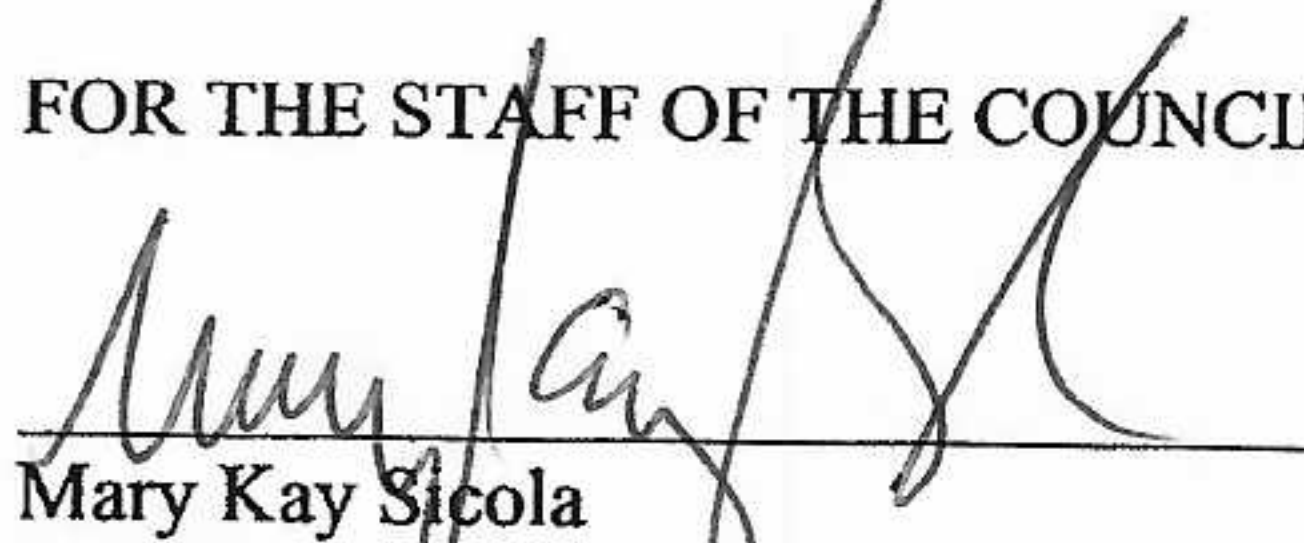
FOR THE RESPONDENT:



Richard Zello (#71486)

DATE SIGNED: 05/28/21

FOR THE STAFF OF THE COUNCIL:



Mary Kay Sicola

Texas Bar No. 18339800

Staff Attorney

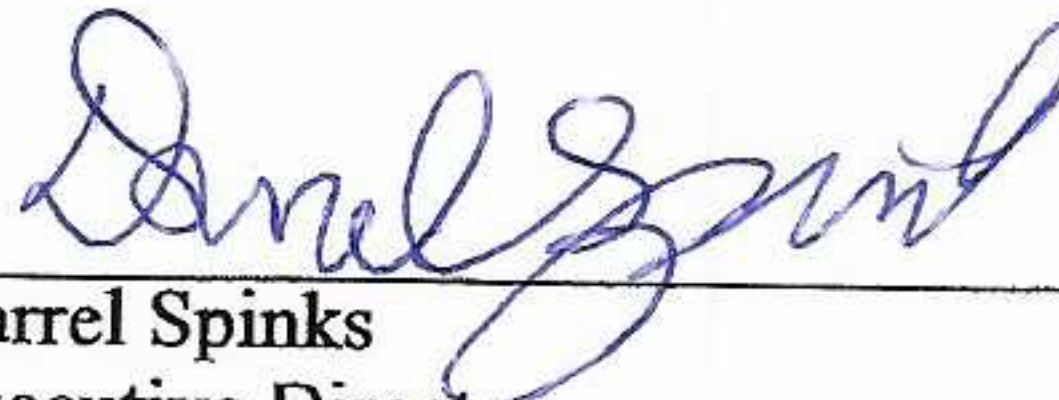
Texas Behavioral Health Executive Council

333 Guadalupe, Ste. 3-900

Austin, Texas 78701

DATE SIGNED: 6/1/2021

APPROVED, RATIFIED, AND ENTERED THIS 7th DAY OF June, 2021.



Darrel Spinks

Executive Director

Texas Behavioral Health Executive Council